Aaron G. Whaley, Esq.
712 Lyndon Lane
Louisville, KY 40222
Ph: (502)583-4022
Fax: (502)364-9363

New Client Information Sheet

Type of case:

Motor Vehicle Collision _____ Slip & Fall _____ Work-Related Injury _____ Other: **MINOR**

Date: _____

Child's Name: _____

Address: _____
_____
_____

Home Phone: _____
Cell Phone: _____
Email: _____

Age: _____ DOB: _____ Gender: ____
Social Security #: _____

Employer: _____
Address: _____
_____
_____

Supervisor: _____
Phone #: _____
May we contact your employer in an emergency?
Yes _____ No _____ Other _____

Health Insurance Information:
Carrier: _____
Policy Holder: _____
Policy #: _____

Workers' Compensation Insurance:
Carrier: _____
Claim #: _____
Adjuster: _____

Guardian Information:
Natural Parent: ____ Court Ordered Custody: ____

Guardian Name: _____
Address: _____
_____
_____

Cell Phone: _____
Email: _____

Age: _____ DOB: _____ Gender: ____
Social Security #: _____
Guardian's Employer: _____

Date of Incident: _____

Describe what happened: _____
_____
_____
_____
_____
_____
_____
_____
_____
_____
_____

How did you hear about The Whaley Law Firm?
_____

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Non-Solicitation AFFIDAVIT

I hereby acknowledge and affirm that no person in his/her individual capacity or his/her capacity as a public or private employee, or any firm, corporation, partnership, subcontractor, or in association with The Whaley Law Firm solicited me for the purpose of making a claim for personal injury protection benefits or any insurance claim with The Whaley Law Firm under my existing policy of automobile insurance or any insurance policy for which I may qualify for benefits as a result of an accident occurring on or about _____.

If I did not have insurance at the time of the accident, to make a claim for insurance benefits under another policy of insurance that I may qualify for benefits. Further I hereby acknowledge and affirm that I was injured as a result of an accident in _____ county, in the state of _____. I was not forced or requested to treat at _____, as a result of my injuries and that The Whaley Law Firm nor anyone associated with The Whaley Law Firm has offered me money, services, gifts, promises or other considerations for the purpose of treating with my specific provider.

_____
The Whaley Law Firm, PSC
Aaron G. Whaley

_____
Client Name (Print)

_____
Client Signature

_____
Date

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Personal Injury Fee Agreement

(Minor)

(For Representation for any bodily injury claim up to Trial in Civil Court)

I _____ on behalf of _____, a minor hereby retain and employ the law office of The Whaley Law Firm, PSC (herein after Law Office) as their attorneys to represent them in their claims arising from an auto accident on or about _____, 20___ in _____ county, in the state of _____.

I _____ on behalf of _____, a minor, hereby authorize any action on their behalf, including the institution of legal proceedings that The Whaley Law Firm, PSC. deems proper and necessary.
I desire The Whaley Law Firm, PSC to provide legal representation on their behalf and I understand that the Law Office is willing to provide said representation for the consideration and according to the terms set forth:

> I agree and understand that I will pay The Whaley Law Firm, PSC. an attorney fee of 33.336% (thirty-three and one third precent) of any and all amounts recovered from each and every Defendant prior to a lawsuit being filed. I agree and understand that I will pay The Whaley Law Firm, PSC. an attorney fee of 40% (Forty percent) after suit has been filed on any and all amounts recovered from each and every Defendant.

In addition to the attorney fee described above, I hereby agree and understand that all costs incurred in pursuit of my claims shall be paid by The Whaley Law Firm, PSC. and reimbursed from any amounts recovered. Said costs include, but may not be limited to court costs, subpoena costs, costs for photocopies, postage, depositions, court reporters, travel, cost for obtaining medical records/bills and any other evidence independently organized and a settlement proposal prepared, the cost of expert witnesses, interest on case development loans incurred by the Whaley Law Firm, PSC. for and on my behalf or the behalf of my claims/cases. The attorney fee shall be calculated upon the full amount of any recovery prior to any deduction of expenses discussed herein.

I also understand that if there is no monetary recovery, The Whaley Law Firm, PSC. will not seek reimbursement of any case expenses or other costs, or interest from me. In other words, I understand that if I do not receive a monetary recovery, I will not be responsible for reimbursing The Whaley Law Firm, PSC. for any expenses or costs that The Whaley Law Firm, PSC. incurs on my behalf or on the behalf of my claims/cases.

I hereby grant The Whaley Law Firm, PSC. full permission to disclose their medical records and medical bills to any and all persons, businesses, insurance companies, or any other individuals or entities whom they deem helpful or useful to my claims/cases. This specifically includes any person The Whaley Law Firm, PSC. may decide to have review, organize, or otherwise view my medical records and any person they may chose to help prepare a settlement package on my behalf or on behalf of my claims/cases.

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I further agree to cooperate and assist The Whaley Law Firm, PSC. in the preparation of my claims/cases including attending any conferences, identifying, locating witnesses, and preparation of any materials requested by The Whaley Law Firm, PSC. in a timely manner.

I further agree and understand The Whaley Law Firm, PSC. has made no promises or guarantees regarding the outcome of my claims/cases, I understand The Whaley Law Firm, PSC. will investigate my claims/cases and if after doing so, believe that the claims/cases do not appear to have merit or otherwise do not wish to proceed with my claims/cases, The Whaley Law Firm, PSC. has the right to cancel this agreement and withdrawal as legal representation of my claims/cases.

I understand this contract does not include any claims for 'loss of consortium' for my spouse, my children, or any other person. I understand this contract does not include any services beyond the Trial of my claims/cases and that any and all appeals would have to be separately discussed and negotiated, The Whaley Law Firm, PSC. is in no way obligated or responsible for the prosecution of any appeal under this contract.

I further agree and understand that complete cooperation and regular communication is mandatory in the facilitation of my claims/cases and will accept any and all correspondence regardless of delivery method from The Whaley Firm, PSC as well as their agents and representatives directly related to my claims/cases. I agree that if my contact information should change at any time during the processing of my claims/cases, I will immediately notify The Whaley Law Firm, PSC. with my new contact information. Failure to do so, and/or failure to respond to communication may result in The Whaley Law Firm, PSC withdrawing from my claims/cases without further actions. I grant permission to The Whaley Law Firm, PSC. to assume I have received all correspondence sent to me at the contact information provided on the date of the agreement, even without acknowledgement of receipt, unless written notification has been given of any changes in my contact information.

This contract represents the entire agreement between The Whaley Law Firm, PSC. and the undersigned. Neither party is relying on any representation not specifically included herein. If the attorney, having made a reasonable investigation, determines that it is not feasible or proper for a claim to be pursued, the attorney may notify the undersigned of that determination and the attorney may withdraw from further representation of the client under this civil contract.

Aaron G. Whaley The Whaley Law Firm, PSC	Guardian's Name (Print)
Guardian's Signature	Date

Aaron G. Whaley, Esq.
712 Lyndon Lane
Louisville, KY 40222
Ph: (502)583-4022
Fax: (502)364-9363

Accident Detail Information

Were the Police called? No _____ Yes _____
Was a Police Report taken or a Civilian Report made? No _____ Yes _____
*If yes, please provide the name of the report and the report id number: _____

Do you have UM or UIM coverage? No _____ Yes _____
Does anyone else in your household own/insure a vehicle? No _____ Yes _____
*If yes, please provide their name & the name of their insurance carrier: _____

Do you have the name & insurance information of the other driver? No _____ Yes _____
*If yes, please provide any information obtained at the scene: _____
_____

On a scale of 1-10, please indicate the severity of any and all portions of your vehicle:

___ Front End
___ Front Air Bags
___ Front Driver Side
___ Front Passenger Side
___ Windshield
___ Interior Dash
___ Driver Side Seat
___ Passenger Side Seat
___ Rear Seat(s)
___ Rear Dash
___ Rear Storage Compart
___ Rear End
___ Rear Air Bags
___ Rear Driver Side
___ Rear Passenger Side
___ Front Driver Tire
___ Front Passenger Tire
___ Rear Driver Tire
___ Rear Passenger Tire
___ Rear Windshield
___ Side Window(s)
___ Side Air Bags
___ Roof
___ Engine

Was there any other damages not listed above? No _____ Yes _____
*If yes, please list additional damages up to & including car seats, cell phones, optical glasses, etc.:
_____
_____

Please provide any witness information available up to & including any other passengers:
_____
_____
_____
_____
_____
_____

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Medical Treatment Questionnaire

Did you leave the scene of the accident via EMS? No _____ Yes _____
Did you visit the emergency room or urgent care center? No _____ Yes _____

Have you seen your Primary Care Provider? No _____ Yes _____ Do not have one _____
*If yes, please provide the name of your primary care provider: _____

On a pain scale of 1-10, please indicate your pain level for any and all injured body parts:

___ Head
___ Cervical Spine (Neck)
___ Thoracic Spine (Middle)
___ Lumbar Spine (Lower)
___ C & T Spine
___ T & L Spine
___ Ears
___ Left Shoulder
___ Right Shoulder
___ Left Upper Extremity
___ Rt Upper Extremity

___ Left Elbow
___ Rt Elbow
___ Left Wrist
___ Rt Wrist
___ Left Hand
___ Rt Hand
___ Left Fingers
___ Rt Fingers
___ Chest
___ Abdomen
___ Left Lower Extremity (Thigh)

___ Rt Lower Extremity (Thigh)
___ Left Knee
___ Rt Knee
___ Left Lower Extremity (Shin)
___ Rt Lower Extremity (Shin)
___ Left Ankle
___ Rt Ankle
___ Left Foot
___ Rt Foot
___ Left Toes
___ Rt Toes

Were there any other injuries not listed above? No _____ Yes _____
*If yes, please list additional injuries:

_____
_____
_____

Please provide the names and locations of any and all medical providers you have seen related to this accident including any EMS services and/or pharmacies used to fill your prescriptions:

_____
_____
_____
_____
_____
_____

_____
_____
_____
_____
_____
_____

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HIPAA COMPLIANT MEDICAL AUTHORIZATION

(Authorization to Release Protected Health Care Information)

To:

Dear Medical Records Clerk:

I, _____ on behalf of _____, a minor, have retained The Whaley Law Firm, PSC to represent me in matters related to an injury sustained due to a third parties' negligence. Please forward a copy of any & all records not previously provided to The Whaley Law Firm upon request.

Pursuant to the Health Insurance Portability & Accountability Act (HIPAA) Privacy Regulations, 45 CFR 164.508, the provider listed above is hereby authorized to release to The Whaley Law Firm, PSC or any of their representatives, all medical records, including but not limited to: Office Notes, History, Physical, Consultation Notes, Discharge Summaries, Orders, Progress Notes, Laboratory Results, Nurses' Notes, Emergency Room Records, Operative Reports, In-Patient Records and films of X-Rays, MRIs, CT Scans, or PET Scans, Pharmacy and Drug Records, Medical Bills and Health Insurance Information, Medicaid/Medicare Records, concerning ANY medical treatment that I have received from you and/or at your facility, as well as ALL such records which you keep in the regular course of business that are found in my medical record file.

I, _____ on behalf of _____, a minor, hereby authorize the release of ANY & ALL records regarding mental health, psychiatric (other than psychotherapy notes, which must be requested under separate authorization), Chemical Dependency or HIV.

A photostatic copy hereof shall be as valid as the original.

I, _____ on behalf of _____, a minor, hereby authorize a FREE COPY of my medical records pursuant to KRS 422.317 be sent to the extent I have not already requested my one free copy.

The purpose of this authorization and request is to permit my attorney to obtain ALL medical information pertaining to my physical and mental condition(s). This authorization expires in three (3) years from the date of the signature. The aforementioned expiration date has not passed, as this matter is on-going. I hereby authorize The Whaley Law Firm, PSC. to speak to my healthcare providers privately or to take the testimony at deposition and/or trial as may be requested.

I _____ on behalf of _____, a minor, have the right to revoke this authorization in writing by providing a signed, written notice of revocation to the healthcare provider listed above and to The Whaley Law Firm, PSC. I understand that there are exceptions to the right to revoke. Among the exceptions to the right to revoke are that an individual may not revoke an authorization to the extent that the covered entity has taken action in reliance thereon. Medical Providers may not condition treatment or payment on whether the above-listed patient executes this authorization. The information disclosed pursuant to this authorization may be subject to re-disclosure and no longer protected by the privacy regulations promulgated pursuant to the Health Insurance Portability and Accountability Act (HIPAA)

_____ _____
Guardian's Signature Date of Birth of Patient

_____ _____
Guardian's Name (Print) Social Security of Patient Date: _____

1-2020

KENTUCKY NO FAULT

IMPORTANT:
A. TO ENABLE US TO DETERMINE IF YOU ARE ENTITLED TO BENEFITS, YOU MUST COMPLETE AND SIGN THIS FORM.
B. YOU MUST ALSO SIGN THE ATTACHED AUTHORIZATION (S).
C. RETURN PROMPTLY WITH ANY MEDICAL BILLS YOU HAVE RECEIVED TO DATE.

DATE DATE OF ACCIDENT

1. YOUR NAME HOME PHONE NUMBER BUSINESS PHONE NUMBER

2. YOUR ADDRESS (NO., STREET, CITY OR TOWN, STATE & ZIP CODE) DATE OF BIRTH SOCIAL SECURITY NO.

3. DATE AND TIME OF ACCIDENT PLACE OF ACCIDENT (STREET, CITY OR TOWN AND STATE)
A.M. ☐
P.M. ☐

4. BRIEF DESCRIPTION OF ACCIDENT

5. DO YOU OR ANY MEMBER OF YOUR HOUSEHOLD OWN A MOTOR VEHICLE? YES ☐ NO ☐

IF "YES," NAME OF INSURANCE COMPANY _____; POLICY NUMBER _____

WERE YOU THE DRIVER OF THE MOTOR VEHICLE? YES ☐ NO ☐
WERE YOU A PASSENGER IN THE MOTOR VEHICLE? YES ☐ NO ☐
WERE YOU A PEDESTRIAN? YES ☐ NO ☐
WERE YOU A MEMBER OF THE MOTOR VEHICLE OWNER'S HOUSEHOLD? YES ☐ NO ☐
HAVE YOU REJECTED THE LIMITATIONS ON YOUR RIGHT TO SUE AS PROVIDED BY KENTUCKY NO-FAULT ACT (KRS 304.39)? YES ☐ NO ☐

6. AS A RESULT OF THIS ACCIDENT, WERE YOU INJURED?
YES ☐ (IF YOUR ANSWER IS "YES", COMPLETE THE REST OF THIS FORM.)
NO ☐ (IF "NO," SIGN HERE AND REURN THIS FORM TO US.)

_____ _____
Signature Date

7. DESCRIBE YOUR INJURY

8. WERE YOU TREATED BY A DOCTOR? YES ☐ NO ☐ DOCTORS NAME AND ADDRESS

9. IF YOU WERE TREATED IN A HOSPITAL, WERE YOU AN HOSPITAL'S NAME AND ADDRESS
IN-PATIENT ☐ OUT-PATIENT ☐

10. AMOUNT OF MEDICAL BILLS TO DATE $_____
WILL YOU HAVE MORE MEDICAL EXPENSE? YES ☐ NO ☐
AT THE TIME OF YOUR ACCIDENT, WERE YOU IN THE COURSE OF YOUR EMPLOYMENT? YES ☐ NO ☐

11. DID YOU LOSE WAGES OR SALARY AS A RESULT OF YOUR INJURY? YES ☐ NO ☐

IF "YES," AMOUNT LOST TO DATE $_____
WHAT IS YOUR AVERAGE WEEKLY WAGE OR SALARY? $_____

12. IF YOU LOST WAGES:
BEGINNING DATE OF DISABILITY FROM WORK: _____ DATE RETUNED TO WORK _____

13. HAVE YOU RECEIVED OR ARE YOU ELIGIBLE FOR BENEFITS UNDER

1. ANY WORKMEN'S COMPENSATION LAW? YES ☐ NO ☐

IF "YES," AMOUNT: $_____ PER WEEK ☐ PER MONTH ☐

2. SOCIAL SECURITY BENEFITS? YES ☐ NO ☐

1-2020

14. LIST NAMES & ADDRESSES OF YOUR EMPLOYER & OTHER EMPLOYERS FOR 1 YEAR PRIOR TO ACCIDENT DATE. GIVE OCCUPATION & EMPLOYMENT DATES.

EMPLOYER AND ADDRESS	OCCUPATION	FROM	TO
EMPLOYER AND ADDRESS	OCCUPATION	FROM	TO
EMPLOYER AND ADDRESS	OCCUPATION	FROM	TO

I hereby authorize release of medical information, including but not limited to, medical bills and reports, to such persons as the company may deem necessary.

15. AS A RESULT OF YOUR INJURY, HAVE YOU HAD ANY OTHER EXPENSES? YES ( ) NO ( )
IF "YES", explain:

16. SUPPLEMENT TO THE "APPLICATION FOR BENEFITS" FOR CLAIMS SUBMITTED TO THE KENTUCKY ASSIGNED CLAIMS PLAN

You are required to provide this information in accordance with the KRS304.39-160. This supplement must be accompanied by the Application for Benefits form.

AS A RESULT OF INJURIES RECEIVED IN THE ACCIDENT, DID YOU RECEIVE AND ARE YOUR ENTITLED TO RECEIVE ANY BENEFITS INCLUDING BUT NOT LIMITED TO:

A) PRIVATE INURANCE? Yes ( ) No ( )

If "Yes", check type: Health ( ) Group ( ) Auto ( ) Other ( )

B) GOVERNMENT BENEFITS? (County, State or Federal) Yes ( ) No ( )

If "Yes" type: Social Security ( ) Medicare ( ) Workmen's Comp ( ) Other ( )

C) OTHER GRATUITOUS BENEFITS? Yes ( ) No ( )

Wage continuation plans or other benefits (describe)_____

D) BENEFITS RECEIVED FROM ANY OTHER SOURCE? Yes ( ) No ( )

Name and Address of Source: _____

Amount:_____

E) I AM THE OWNER OF A MOTOR VEHICLE. Yes ( ) No ( )

IF THE ANSWER IS "YES", SPECIFY THE NAME OF THE INSURANCE COMPANY,
IF THE MOTOR VEHICLE WAS INSURED AT THE TIME OF THE ACCIDENT.

WARNING

ANY PERSON WHO KNOWINGLY AND WITH INTENT TO DEFRAUD ANY INSURANCE COMPANY OR OTHER PERSON FILES AN APPLICATION FOR INSURANCE CONTAINING ANY MATERIALLY FALSE INFORMATION OR CONCEALS, FOR THE PURPOSE OF MISLEADING, INFORMATION CONCERNING ANY FACT MATERIAL THERETO COMMITS A FRAUDULENT INSURANCE ACT, WHICH IS A CRIME.

_____ _____
Signature Date

1-2020

……>>>>>>>>>>>>……..

DO NOT DETACH

AUTORIZATION FOR MEDICAL INFORMATION

THIS AUTHORIZATION OR PHOTOCOPY HEREOF WILL AUTHORIZE YOU TO FURNISH ALL INFORMATION YOU MAY HAVE REGARDING MY CONDITION WHILE UNDER YOUR OBSERVATION OR TREATMENT, INCLUDING THE HISTORY OBTAINED, X-RAY PHYSICAL FINDINGS, DIAGNOSIS AND PROGNOSIS. YOU ARE AUTHORIZED TO PROVIDE THIS INFORMATION IN ACCORDANCE WITH THE PERSONAL INJURY PROTECTION BENEFITS (KENTUCKY NO-FAULT) LAW.

_____ _____

Signature Date

……

DO NOT DETACH

AUTHORIZATION FOR WAGE AND SALARY INFORMATION

THIS AUTHORIZATION OR PHOTOCOPY HEREOF WILL AUTHORIZE YOU TO FURNISH ALL INFORMATION YOU MAY HAVE REGARDING MY WAGES OR SALARY WHILE EMPLOYED BY YOU. YOU ARE AUTHORIZED TO PROVIDE THIS INFORMATION IN ACCORDANCE WITH THE PERSONAL INJURY PROTECTION BENEFITS (KENTUCKY NO-FAULT) LAW.

_____ _____

Signature Date

……

MAIL COMPLETED FORM WITH ORIGINAL SIGNATURE TO:

KENTUCKY ASSIGNED CLAIMS PLAN
PO Box 436509
Louisville, Kentucky 40243

The Centers for Medicare & Medicaid Services (CMS) is the federal agency that oversees the Medicare program. Many Medicare beneficiaries have other insurance in addition to their Medicare benefits. Sometimes, Medicare is supposed to pay after the other insurance. However, if certain other insurance delays payment, Medicare may make a "conditional payment" so as to not inconvenience the beneficiary, and then recover after the other insurance pays.

Section 111 of the Medicare, Medicaid, and SCHIP Extension Act of 2007 (MMSEA), a federal law that became effective January 1, 2009, requires that liability insurers (including self-insurers), no-fault insurers, and workers' compensation plans report specific information about Medicare beneficiaries who have other insurance coverage. This reporting is to help CMS to properly coordinate payment of benefits among plans so that your medical claims are paid promptly and correctly.

We are asking you to answer the questions below so that we may comply with this law.

Please review this picture of the Medicare card to determine if you have, or have ever had, a similar Medicare card.

Please note the Medicare Number located on this card.

Section I

Are you presently, or have you ever been, enrolled in Medicare?	☐ Yes	☐ No
If yes, please complete the following. If no, proceed to Section II.		
Full Name: *(Please print the name exactly as it appears on your SSN or Medicare card if available.)*		
Medicare Number:	**Date of Birth (Mo/Day/Year)** / /	
****Social Security Number:** (If Medicare Number is Unavailable) - -	**Sex** ☐ Female	☐ Male

** Note: If you are unable to provide your Medicare Number **and** uncomfortable with providing your full Social Security Number (SSN), you have the option to provide the last **5** digits of your SSN in the section above.

Section II

I understand that the information requested is to assist the requesting insurance arrangement to accurately coordinate benefits with Medicare and to meet its mandatory reporting obligations under Medicare law.

_____

Claimant Name (Please Print)

_____

Name of Person Completing This Form If Claimant is Unable (Please Print)

_____ _____

Signature of Person Completing This Form **Date**

If you have completed Sections I and II above, stop here. If you are refusing to provide the information requested in Sections I and II, proceed to Section III.

Section III

_____

Claimant Name (Please Print)

For the reason(s) listed below, I have not provided the information requested. I understand that if I am a Medicare beneficiary and I do not provide the requested information, I may be violating obligations as a beneficiary to assist Medicare in coordinating benefits to pay my claims correctly and promptly.

Reason(s) for Refusal to Provide Requested Information:

_____

_____

_____

_____

_____ _____

Signature of Person Completing This Form **Date**

Aaron G. Whaley, Esq.
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Authorization to Digitally Replicate Signature

(For Facilitation of Documents Directly Related to the Legal Matter Listed)

Date:_____

Full Name: _____

Date of Incident: _____

Type of Incident: _____

To Whom It May Concern:

I,_____ having been duly & sufficiently advised hereby authorize my attorneys, The Whaley Law Firm, PSC. or any agent or representative working on their behalf to electronically sign my name to documents related strictly to a legal matter for which they currently represent me.

It will act as my electronic signature to this agreement and will constitute my acceptance of and agreement with all the terms and conditions as set forth in this agreement.

I further understand, my electronic signature may be used in the facilitation of my claim or case up to and including the authorization to release HIPPA protected information, Employment related information, Prior claim or case information, other information related to any previous legal matter.

The foregoing authorization shall continue in effect and force until revoked by me is writing. A photostatic copy of this authorization shall serve the same purpose as the original.

_____
Signature

_____
Name

_____
Date signed